



## CHAPTER cxxxix.

An Act to confirm certain Provisional Orders of the Local Government Board for Ireland relating to the County of Wexford the Urban District of Wexford and the Town of Keady. A.D. 1903.  
[11th August 1903.]

**W**HEREAS the Local Government Board for Ireland have made the Provisional Orders set forth in the schedule hereto under the Public Health (Ireland) Act 1878 and the Local Government (Ireland) Acts 1898 to 1902 or some of those Acts :

41 & 42 Vict. c. 52.  
61 & 62 Vict. c. 37.  
63 Vict. c. 10.  
63 & 64 Vict. c. 63.  
1 Edw. 7. c. 23.  
2 Edw. 7. c. 38.

And whereas it is requisite that the said Orders should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders set out in the schedule hereto are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in  
schedule  
confirmed.

2. This Act may be cited as the Local Government Board (Ireland) Provisional Orders Confirmation (No. 3) Act 1903. Short title.

1903.

SCHEDULE.

TOWN OF KEADY.

*ady. Provisional Order for constituting the Town of Keady an Urban  
Sanitary District.*

3 Vict. WHEREAS the town of Keady is a town having Commissioners under the Towns Improvement (Ireland) Act 1854 and is situate in and forms part of the rural district of Armagh in the administrative county of Armagh :

And whereas the Town Commissioners of the town of Keady have presented a petition to the Local Government Board for Ireland (in this Order referred to as "the Local Government Board") praying that the said town may be separated from the rural district of Armagh and be constituted an urban sanitary district :

2 Vict. Now therefore We the Local Government Board in pursuance of the powers given to Us by section 7 of the Public Health (Ireland) Act 1878 and by certain enactments in the Local Government (Ireland) Acts 1898 to 1902 and of all other powers enabling Us in that behalf do hereby order that from and after the first day of October next after the date of the Act confirming this Order the following provisions shall have effect namely :—

1. The town of Keady shall be separated from the rural district of Armagh in the administrative county of Armagh and shall be constituted an urban sanitary district (in this Order referred to as "the urban district of Keady") subject to all the provisions of the Public Health (Ireland) Acts 1878 to 1900 as amended by the provisions of the Local Government (Ireland) Acts 1898 to 1902 affecting urban sanitary districts.

2. To the urban sanitary authority of the urban district of Keady constituted by the foregoing article of this Order (in this Order referred to as "the urban district council of Keady") there shall be transferred—

(a) The business of the rural district council of Armagh in respect to public works so far as respects the said urban district constituted as aforesaid ; and

(b) So far as respects the said urban district the business of the county council of the administrative county of Armagh in relation to public works the expense of the maintenance of which is not wholly or partly leviable off the county at large.

3. Any sum which is applicable by the council of the administrative county of Armagh to the relief of any agricultural land within the boundaries of the urban district of Keady from rates shall be paid to the urban district

[3 EDW. 7.] *Local Government Board (Ireland) [Ch. cxxxix.]*  
*Provisional Orders Confirmation (No. 3) Act, 1903.*

council of Keady in exchange for an adequate exemption of the said land from rates. A.D. 1903.

Keady.

4. Any adjustment of property rights and liabilities which may become necessary for the full and effectual carrying out of this Order shall be made as between the urban district council of Keady and the county council of the administrative county of Armagh or as between the said urban district council and the rural district council of Armagh or as between the said urban district council and any other persons whatsoever in manner provided by Article thirty of the schedule to the Local Government (Application of Enactments) Order 1898. Provided that a duly certified copy of every adjustment or award made in pursuance of this Article shall be deposited by the clerk of the said urban district council at the office of the Local Government Board within one month of the date on which the same is finally made.

5. The urban district council shall be exempt from contributing to the following county-at-large charges of the county of Armagh namely :—

- (a) Salaries pensions and other expenses of officers other than the secretary and accountant of the county council employed in the offices of the said secretary ;
- (b) Salaries pensions and other expenses of assistant surveyors and clerks and officers other than the county surveyor employed in the offices of the county surveyor ;
- (c) Expenses of printing books and forms other than printing provided for by subsections (2) and (3) of section 96 of the Local Government (Ireland) Act 1898 ;
- (d) Expenses of publication of notices and documents not directly affecting the said urban district ;
- (e) Expenses of improvement and repairs to premises or portions of premises used solely as offices of the county council and cost of new buildings (if any) which may be required for the county council ;
- (f) Cost of legal advice and law costs incurred in respect of matters not directly affecting the said urban district ;
- (g) Salaries and expenses of collectors of poor rate including all expenses on account of the superannuation or compensation of those collectors ; and
- (h) Fees for audit of accounts of county council.

61 & 62 Vict.  
c. 37.

6. If by reason of the constitution of the urban district of Keady any officer of the council of the county of Armagh suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary he shall be entitled to have compensation paid to him for such pecuniary loss by the council of the said urban district and section 120 of the Local Government Act 1888 shall apply accordingly with the substitution of the district council for the county council. 51 & 52 Vict.  
c. 41.

7. The costs and expenses of the Town Commissioners of the said town of Keady and of the Local Government Board incurred in respect of the

[Ch. cxxxix.] *Local Government Board (Ireland) [3 EDW. 7.]  
Provisional Orders Confirmation (No. 3) Act, 1903.*

A.D. 1903. application for preparation making and confirmation of this Order shall be  
*Keady.* paid by the urban district council of Keady out of and by means of the rates  
leviable under the Towns Improvement (Ireland) Act 1854 as amended by  
any enactment.

8. This Order may be cited as the town of Keady Urban District  
Order 1903.

Given under our Seal of Office this Twenty-fifth day of March  
in the year of Our Lord One thousand nine hundred and three.

(L.S.)

(Signed) H. A. ROBINSON.

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URBAN DISTRICT OF WEXFORD.

*Wexford.* *Provisional Order to alter the financial relations between the  
Urban District of Wexford and the County of Wexford.*

WHEREAS the council of the urban district of Wexford (in this Order  
referred to as "the district council") have presented a memorial to the Local  
Government Board for Ireland (in this Order referred to as "the Local  
Government Board") alleging that the financial relations between the said  
urban district and the county of Wexford are inequitable:

50 & 51 Vict.  
c. cli.

And whereas such Order would alter the provisions of the Wexford  
(Town) Provisional Order 1887 (in this Order referred to as "the Order of  
1887") confirmed by the Local Government Board (Ireland) Provisional  
Orders Confirmation (Dublin &c.) Act 1887 (in this Order referred to as "the  
Act of 1887"):

1 Edw. VII.  
c. 28.

And whereas the said memorial was presented to the Local Government  
Board within two years after the passing of the Local Government (Ireland)  
Act 1901:

And whereas the Local Government Board having inquired into the  
circumstances think it just to make an Order altering the said financial  
relations:

61 & 62 Vict. c. 37.  
1 Edw. 7. c. 28.  
2 Edw. 7. c. 38.

Now therefore We the Local Government Board in pursuance of the  
power given to Us by the Local Government (Ireland) Acts 1898 to 1902 and  
of all other powers enabling Us in that behalf do hereby order that from  
and after the date of the Act confirming this Order the following provisions  
shall have effect namely:—

1. As from the first day of April in the year one thousand eight hundred  
and ninety-nine the district council shall anything in so much of the Act of  
1887 as relates to the Order of 1887 or in any other Act to the contrary  
notwithstanding be exempt from contributing to the following county-at-large  
charges of the county of Wexford namely:—

(a) Salaries pensions and other expenses of officers other than the  
secretary of the county council employed in the offices of the said  
secretary;

[3 EDW. 7.] *Local Government Board (Ireland)* [Ch. cxxxix.]  
*Provisional Orders Confirmation (No. 3) Act, 1903.*

- (b) Salaries pensions and expenses of assistant surveyors and of officers other than the county surveyor employed in the offices of the county surveyor ; A.D. 1903.  
Wexford.
- (c) Salary pension and expenses of the county analyst ;
- (d) Expenses of printing books and forms other than printing provided for by subsections (2) and (3) of section 96 of the Local Government (Ireland) Act 1898 ; 61 & 62 Vict.  
c. 37.
- (e) Expenses of publication of notices and documents not directly affecting the said urban district ;
- (f) Expenses of improvements and repairs to premises or portions of premises used solely as offices of the county council ;
- (g) Cost of legal advice and law costs incurred in respect of matters not directly affecting the said urban district ;
- (h) Salaries and expenses of collectors of poor rate including all expenses on account of the superannuation or compensation of those collectors ;
- (i) Fees for audit of accounts of county council ; and
- (j) All expenses incurred by the county council under the Sale of Foods and Drugs Acts 1875 to 1889 the Weights and Measures Acts 1878 to 1897 or the Explosives Act 1875.

2. The county council shall as from the first day of July nineteen hundred pay during each financial year to the district council a sum equivalent to two forty-fifths of the expense of the maintenance of main roads which was or is levied off the county at large.

3. So much of the Act of 1887 as relates to the Order of 1887 shall be repealed.

4. The costs and expenses of the district council and the Local Government Board incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the district council out of any rate leviable by them within the urban district.

5. This Order may be cited as the Wexford (Urban) Order 1903.

Given under our seal of office this twenty-fourth day of March  
one thousand nine hundred and three.

(L.S.)

(Signed) H. A. ROBINSON.

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[Ch. cxxxviii.] *Drainage and Improvement* [3 EDW. 7.]  
*of Lands Supplemental (Ireland) Act, 1903.*

A.D. 1903. — rateable on account of the works in the district and he shall have previously paid all rates or arrears of rates which may be payable by him in respect of any drainage rate for the aforesaid district.

In witness whereof we the said Commissioners of Public Works in Ireland have hereto caused our common seal to be affixed this twenty-second day of May one thousand nine hundred and three.

(L.S.)

(Signed) H. WILLIAMS  
Secretary

Office of Public Works Dublin.

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